24WCUD01154 24WCUD01154

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-13

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Case Number: 24WCUD01154 Hearing Date: July 13, 2026 Dept: 6

CASE
NAME: John
J. Gerard Jr., as Trustee of the Gerard Revocable Marital Trust Agreement v.
Janet G. Cuevas, et al.

1. Defendant
Janet G. Cuevas' Motion for the Trial Court to Comply with the Order of the
Appellate Division and to Award Attorney Fees; and

2. Plaintiff's
Motion for Leave to File First Amended Complaint

TENTATIVE
RULING

The Court DENIES Defendant Janet G. Cuevas' motion for attorney
fees.

The Court GRANTS Plaintiff's motion
for leave to amend and orders Plaintiff to pay the reclassification fee and
submit proof of payment within five calendar days of this order. Plaintiff must
also file and serve the proposed FAC within five calendar days of this order.

Plaintiff is ordered to give notice
of the Court's rulings within five calendar days of this order.

BACKGROUND

This is an unlawful detainer action. On May 31, 2024, plaintiff John J. Gerard Jr., as Trustee of the Gerard Revocable Marital Trust Agreement (Plaintiff) filed this action against defendants Janet G. Cuevas (Janet),[1] Jorge H. Cuevas (collectively, Defendants), and Does I through III, alleging the sole cause of action for unlawful detainer.

Following the striking of Janet's answer and a default prove-up, the previous Court entered judgment in favor of Plaintiff and against Defendants.

On November 21, 2025, the Appellate Division reversed the judgment and remanded the case to the trial court with instructions to set aside the order striking Janet's answer. The Appellate Division also ordered Janet to recover costs on appeal.

On April 22, 2026, Janet moved for attorney fees. On May 8, 2026, the case was reassigned to this Court. On May 19, 2026, Plaintiff opposed the motion. On May 20, 2026, Janet replied to the opposition. On June 3, 2026, the Court continued the hearing to July 13, 2026, for supplemental briefing. On June 17, 2026, Janet filed a supplemental brief in support of the motion for attorney fees. On June 26, 2026, Plaintiff filed a supplemental opposition. On June 29, 2026, Janet filed a supplemental reply.

On June 15, 2026, Plaintiff filed a motion for leave to file a First Amended Complaint. The motion is unopposed.

LEGAL STANDARD – Attorney Fees

"The following items are allowable as costs under Section 1032:… (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." (Code Civ. Proc., § 1033.5, subd. (a)(10).) Generally, a prevailing party is one who obtained a net judgment in his or her favor. (See Smith v. Rae-Venter Law Group (2002) 29 Cal.4th 345, 365, 370, superseded by statute on other grounds as stated in Sonic-Calabasas A, Inc. v. Moreno (2013) 57 Cal.4th 1109, fn. 6 [J. Chin, concur. and dissent. opn.].) But, the determination is ultimately based on whether the party seeking attorney fees has achieved its main litigation objective. (Hsu v. Abbara (1995) 9 Cal.4th 863, 877.) The Court also looks to who prevailed on a practical level. (Heather Farms Homeowners Ass'n, Inc. v. Robinson (1994) 21 Cal.App.4th 1568, 1574.)

The party seeking fees and costs

bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney… involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

PRELIMINARY ISSUES – Attorney Fees

The Court takes issue with Defendant Janet’s counsel’s attacks on the Court in the moving papers. The following is one example of such attack:

In this case, the trial court spat on the due process rights of litigants under the auspices that a defendant in unlawful detainer, especially one who is a woman of color, has fewer rights than every civil litigant. The trial court chose to relieve a landlord of having to secure the attendance of their witnesses through a subpoena or notice to appear, all because Plaintiff’s counsel suggested that they needed Defendant to be present so that they could exclude jurors who look like her. Despicably, the trial court and Plaintiff’s counsel chose to deprive Defendant of any right to defend herself from homelessness, despite it being true for over a century that disobedience with a subpoena may not lead to striking of an answer and default. The trial court’s rulings were a blight on the legitimacy of the judiciary and just proved what tenants all too often believe: that unlawful detainer trial courts care little about the substantive law and are concerned more about ensuring that landlords may create homelessness than basic due process, at least when the tenant is a person of color.

(Motion, 11:25-12:8.)

This is wholly improper. “It is the duty of an attorney to do all of the following:… (b) To maintain the respect due to the courts of justice and judicial officers.” (Bus. & Prof. Code, § 6068, subd. (b).) Moreover, the Appellate Division’s opinion mentions nothing about the prior trial court engaging in racial discrimination or bias or that those were the reasons for reversing the prior trial court’s decision to strike Janet’s answer. (See generally, Gerard v. Cuevas (2025) 118 Cal.App.5th Supp. 37.) The Court takes accusations of racial discrimination and bias seriously, but flippant and unsupported accusations of racism and bias against the Court are improper. (See In re Buckley (1973) 10 Cal.3d 237, 250 [holding that attorney’s statement to the trial judge that “This Court obviously doesn't want to apply the law” was contemptuous on its face, as it impugned the court’s integrity and constituted a charge of deliberate judicial dishonesty unsupported by the record]; see also Fine v. Superior Ct. (2002) 97 Cal.App.4th 651, 667 [false accusation of judicial impropriety was contemptuous].)

Additionally, the Court never received the remittitur from the Appellate Division, nor is there a copy of the remittitur in the Court’s file. As such, Janet’s complaints about having to file a motion to get the Court to comply with the Appellate Division’s order is not well taken. (Motion, 6:3-5.)

Moreover, Janet’s supplemental brief provides the following quoted language without providing a proper citation: “only to a private individual litigant ‘with no institutional interest in the litigation,’”. (Supp. Brief, 9:2-3.) The citations surrounding that quoted language are for City of San Clemente v. Dept. of Transport. (2023) 92 Cal.App.5th 1131 and Grossmont Union High Sch. Dist. v. Diego Plus Educ. Corp. (2023) 98 Cal.App.5th 552, neither of which contains that quoted language. However, the Court did find the aforementioned quoted language in Let Them Choose v. San Diego Unified Sch. Dist. (2024) 103 Cal.App.5th 953, 966. The Court further notes that Janet’s supplemental brief attributes the quotation “A favorable final judgment is not necessary…" to Graham v. DaimlerChrysler Corp. (2005) 34 Cal.4th 553, 565, but no such language is found in that case. (Supp. Brief, 16:3-4.) The Court also notes, however, that the language is not necessarily wrong as to the points the Court of Appeal made in that case, but is misquoted. Janet's reply brief also attributes the quotations "had nothing to do with the rights being vindicated" and "did nothing to adversely affect the public interest" to Adoption of Joshua S. (2008) 42 Cal.4th 945,969, 971, but those pages do not exist and the quoted phrases cannot be found in that case. (See generally, Adoption of Joshua S. (2008) 42 Cal.4th 945; Suppl. Reply, 5:1-3.) The Court admonishes Janet's counsel to be more cautious going forward when citing and quoting from cases.

DISCUSSION –
Attorney Fees

Summary
of Arguments

Defendant
Janet contends that she is entitled to attorney fees under Code of Civil Procedure section 1021.5 because the published appellate opinion in Gerard v. Cuevas, which reversed the prior trial court's decision to strike Janet's answer, vindicated important public rights, including due process protections and limits on courts' authority to compel represented litigants to appear. Janet contends the decision clarified that trial courts cannot retroactively shorten notice periods or impose terminating sanctions for disobedience with a defective notice to appear. Janet argues that this outcome benefits a broad class of tenants and civil litigants and addresses systemic abuses in unlawful detainer courts. Therefore, Janet contends she qualifies as a "successful party" whose litigation conferred a significant public benefit warranting fee recovery.

Janet
asserts that nonprofit enforcement was necessary because no governmental entity enforces tenants' procedural rights in unlawful detainer proceedings, leaving organizations like Janet's counsel to challenge widespread unlawful practices. Janet contends that the interests of justice support a fee award because she received no monetary recovery and pursued the appeal primarily to protect the rights of others similarly situated. Janet argues that the requested $97,781.25 fee, reflecting a $78,225 lodestar enhanced by a 1.25 multiplier, is justified by Janet's counsel's

specialized appellate expertise, the contingency risk, and the significant time and skill required to litigate novel issues of statutory interpretation and due process. Janet contends the appellate work demanded extensive research, repeated transcript correction efforts, and careful brief drafting in a case with no direct precedent on several key questions. Janet argues that any fee award will support Janet's counsel's nonprofit mission by funding representation for low-income tenants who otherwise lack access to appellate counsel. Janet further contends the fee request is reasonable, market-consistent, and essential to ensuring continued public-interest enforcement of tenant protections.

In
opposition, Plaintiff argues that the underlying case must proceed because over $25,000 in unpaid rent remains at issue. Plaintiff opposes the fee request under Code of Civil Procedure section 1021.5, asserting that Janet has not met any of the statute's requirements for public interest fees. Plaintiff contends the appellate reversal did not enforce an important public right but merely corrected a fact-specific abuse of discretion involving an untimely notice to appear. Plaintiff contends the case concerns Janet's personal litigation strategy, specifically her refusal to attend her own jury trial, rather than rights impacting a broad class of people. Plaintiff argues only Janet benefited by the reinstatement of her answer so she can contest a substantial rent claim.

Plaintiff
then argues that Janet had strong personal financial incentives to appeal, including avoiding eviction, reducing a large potential money judgment, and mitigating the long-term harm of an eviction record. Because Janet incurred no actual legal fees due to fee waivers and nonprofit representation, Plaintiff contends that the financial burden requirement of section 1021.5 is not satisfied. Plaintiff argues that correcting an isolated trial court error does not equate to advancing public rights, citing precedent rejecting fee awards where victories only benefit the litigants involved. Plaintiff also attacks the fee request as grossly inflated, labeling it a "money grab" and arguing that the hours billed, including more than 44 hours for a single-issue brief, are unreasonable. Plaintiff argues that courts may deny fees entirely when a request is unreasonably excessive.

In
the supplemental brief and reply, Janet contends that the Court's initial tentative ruling improperly applies the narrow Adoption of Joshua S. (2008) 42

Cal.4th 945 (Joshua S.) exception, stressing that Plaintiff never raised it and that Plaintiff bears the burden of proving any such exemption. Janet argues that all statutory elements for a Code of Civil Procedure section 1021.5 award are satisfied and emphasizes that defendants, like plaintiffs, may recover public-interest attorney fees when their litigation vindicates important rights. Janet contends the tentative misinterprets precedent by treating private litigants as effectively immune from fee liability, contrary to cases allowing section 1021.5 awards against private parties whose litigation positions threaten the public interest. Janet asserts that Plaintiff had an institutional interest and actively induced the trial court's errors, including pressing arguments that would have weakened tenants' due-process and jury-trial rights. Janet argues that Plaintiff's appellate positions, such as permitting retroactive notice-shortening and unlawful terminating sanctions, would have created a diminished tier of constitutional protections for tenants. Janet contends that because these actions sought to curtail important public rights, this case cannot fall within the narrow Joshua S. exception. Janet also argues that the published appellate decision for the present case corrected a widespread unlawful-detainer practice harming represented litigants, producing a significant public benefit beyond the individual defendant. Finally, Janet contends that denying fees would undermine the Legislature's intent behind section 1021.5 by rendering public-interest appeals financially infeasible for nonprofits, and asks the court to award the full $97,781.25.

In the supplemental opposition brief, Plaintiff argues that Janet's request for nearly $100,000 in attorney fees under Code of Civil Procedure section 1021.5 is unfounded because the underlying unlawful detainer case was purely a private rent-nonpayment dispute, not public-interest litigation. Plaintiff contends that Janet chose a jury trial, failed to appear despite repeated assurances from counsel, and that the trial court's mistaken sanction was later corrected on appeal, producing no public rights enforcement. Plaintiff argues that none of the three threshold section 1021.5 prongs are met because the case neither enforced an important public right nor conferred a significant public benefit, and Janet had a substantial personal financial incentive to litigate given her eviction risk. Plaintiff further asserts that the Joshua S. exception bars fees, as Plaintiff did nothing to compromise public rights and merely litigated a private claim for possession. Plaintiff also distinguishes the cases Janet cites on the grounds that those matters involved genuine public-interest enforcement unlike this private landlord-tenant dispute. Plaintiff argues that this Court properly applied Joshua S. on its own because it is part of the statute's interpretive framework rather than an affirmative defense. Plaintiff further argues that imposing fees here would contradict the purpose of section 1021.5 and would wrongly penalize an individual landlord for a trial court's reversible error in a case where the defendant still owes unpaid rent.

Analysis

Prevailing Party

(a) Right to costs

(1) Except as provided in this rule or by statute, the prevailing party in a civil appeal is entitled to costs on appeal.

(2) The prevailing party is the respondent if the appellate division affirms the judgment without modification or dismisses the appeal. The prevailing party is the appellant if the appellate division reverses the judgment in its entirety.

(Cal.
Rules of Court, rule 8.891, subds. (a)(1)-(a)(2).)

"Unless the court orders otherwise, an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702." (Cal. Rules of Court, rule 8.891, subd. (d)(2).)

"Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any." (Code Civ. Proc., § 1021.5, subd. (a).)

"Section 1021.5 codifies the private attorney general doctrine the Supreme Court adopted in Serrano v. Priest (1977)

20 Cal.3d 25 [141 Cal. Rptr. 315, 569 P.2d 1303]. [Citation.] The doctrine rests upon the recognition that privately initiated lawsuits are often essential to the effectuation of the fundamental public policies embodied in constitutional or statutory provisions, and that, without some mechanism authorizing the award of attorney fees, private actions to enforce such important public policies will as a practical matter frequently be infeasible." (Save Our Heritage Organisation v. City of San Diego (2017) 11 Cal.App.5th 154, 159 (Save Our Heritage), internal quotation marks omitted.)

"In determining whether to award attorney fees under section 1021.5 to the 'successful party,' we apply a three-prong test inquiring whether (1) the litigation resulted in the enforcement of an important right affecting the public interest, (2) a significant benefit has been conferred on the general public or a large class of individuals, and (3) the necessity and financial burden of private enforcement renders the award appropriate." (Save Our Heritage, supra, 11 Cal.App.5th at p. 159.)

The California Supreme Court has "recognized an exception to be applied in cases where all three [section 1021.5] factors are satisfied, but the party from whom fees are sought 'is not the type of party on whom private attorney general fees were intended to be imposed.'" (Serrano v. Stefan Merli Plastering Co., Inc. (2011) 52 Cal.4th 1018, 1027, quoting Joshua S., supra, 42 Cal.4th at p. 953, italics in original; see also Save Our Heritage, supra, 11 Cal.App.5th at pp. 160-162.) Applying this exception, "a section 1021.5 fee award may not be imposed on a litigant who did nothing to adversely affect the public interest." (Serrano v. Stefan Merli Plastering Co., Inc., supra, 52 Cal.4th at p. 1020, citing Joshua S., supra, 42 Cal.4th at p. 958.)

The Court finds the analysis of the Court of Appeal in Save Our Heritage applicable to this case. The Court of Appeal explained:

In explicating this exception, the Supreme Court noted, under the American rule, codified in section 1021, "each party to a lawsuit must ordinarily pay his or her own attorney fees." (Joshua S., supra, 42 Cal.4th at p. 954, 70 Cal.Rptr.3d 372, 174 P.3d 192.) "Although not explicit in either the statute or case law, it may be supposed that one unspoken justification for departing from the American rule in the case of section 1021.5 private attorney general fees is that it is equitable to impose public interest attorney fees on parties that have done something to adversely affect the public interest.” (Ibid.)

The Supreme Court's review of published cases in which courts awarded section 1021.5 attorney fees supported this supposition. The review revealed courts typically only imposed such fees on parties who “had engaged in conduct that in some way had adversely affected the public interest,” for example by acting or failing to act in a manner “somehow impairing the statutory or constitutional rights of the public or a significant class of people.” (Joshua S., supra, 42 Cal.4th at pp. 954–955 & fn. 3, 70 Cal.Rptr.3d 372, 174 P.3d 192.)

In addition, the Supreme Court looked to the language of section 1021.5 and determined the language impliedly required that “the party on whom attorney fees are imposed be responsible for adversely affecting the public interest.” (Joshua S., supra, 42 Cal.4th at p. 955, 70 Cal.Rptr.3d 372, 174 P.3d 192.) The court explained, “[a]lthough the statute does not explicitly address the type of conduct that would make a party liable for attorney fees, it does suggest what conduct the Legislature had in mind. Section 1021.5 authorizes fees for ‘any action which has resulted in the enforcement of an important right affecting the public interest ....’ (Italics added.) The enforcement of an important right affecting the public interest implies that those on whom attorney fees are imposed have acted, or failed to act, in such a way as to violate or compromise that right, thereby requiring its enforcement through litigation.” (Joshua S., at p. 956, 70 Cal.Rptr.3d 372, 174 P.3d 192.)

The Supreme Court found further support for its conclusion in the statute's legislative history, which indicated the Legislature intended to provide for an award of attorney fees in “litigation designed to promote the public interest by enforcing laws that a governmental or private entity was violating.” (Joshua S., supra, 42 Cal.4th at p. 956, 70 Cal.Rptr.3d 372, 174 P.3d 192.) The court also found its conclusion was consistent with Connerly v. State Personnel Bd. (2006) 37 Cal.4th 1169, 39 Cal.Rptr.3d 788, 129 P.3d 1, which “acknowledged that the parties against whom attorney fees should be assessed should be those responsible for the policy or practice adjudged to be harmful to the public interest.” (Joshua S., supra, 42 Cal.4th at p. 957, 70 Cal.Rptr.3d 372, 174 P.3d 192.)

The relevant inquiry in cases where the defendant or the real party in interest prevails in defending against litigation and seeks attorney fees from the party who initiated the litigation is whether the litigation was detrimental to the public interest because it sought to curtail or compromise important public rights. (Joshua S., supra, 42 Cal.4th at pp. 957–958, 70 Cal.Rptr.3d 372, 174 P.3d 192.)

(Save Our Heritage, supra, 11 Cal.App.5th at pp. 161-162.)

After reviewing the parties' initial and supplemental briefs and upon further review of the law, the Court finds that Janet is not entitled to recover attorney fees. There is no dispute that Janet was the successful party on the appeal since the Appellate Division reversed the judgment in its entirety and ordered that Janet was to recover costs on appeal. (Appeal – Opinion Received (11/21/25).) There is no dispute here that the Appellate Division's opinion was published. (Gerard v. Cuevas (2025) 118 Cal.App.5th Supp. 37 (Gerard).) Also, the rights at issue in Gerard involved Janet's constitutional rights to due process and a jury trial. (Id. at pp. 583, 586.) However, Janet did not seek attorney's fees under section 1021.5 from the Appellate Division, which would have been best suited to determine if its decision resulted in the enforcement of an important right affecting the public interest and conferred a significant benefit on the general public or a large class of individuals. (See Leiserson v. City of San Diego (1988) 202 Cal. App. 3d 725, 738 [appellate court evaluates public significance of own opinion].) Thus, this Court is left to make that determination.

While the publication of the opinion may suggest the case involved a matter of public interest, that fact is not dispositive and is one factor to be considered. (Cf. Doe v. Westmont Coll. (60 Cal.App.5th 753, 764 ["The publication of an opinion suggests that the case involved a matter of public importance"]; Serrano v. Stefan Merli Plastering Co., Inc. (2011) 52 Cal.4th 1018, 1029 ["merely because an appellate opinion is certified for publication does not mean it involves an important right affecting the public interest. The fact that litigation results in significant appellate precedent is only one factor to be considered in that regard."].) There is nothing to indicate why the Appellate Division published the Opinion, but in reviewing the Opinion, this Court views it as a "tool to communicate with the bench and bar certain legal guidelines." (See Leiserson v. City of San Diego (1988) 202 Cal.App.3d 725, 738.)

Here, Janet is a defendant in an unlawful detainer lawsuit. During the lawsuit, the trial court struck Janet's answer and entered her default after she failed to appear at trial upon the Court's order for her same-day appearance. Thereafter, the trial court held a prove up hearing and entered a judgment in favor of Plaintiff. (Appeal – Opinion Received (11/21/25).) The Appellate Division of the Superior Court of the County of Los Angeles reversed the judgment and remanded with instructions for the trial court to set aside the order striking Janet's answer. (Appeal – Opinion Received (11/21/25).) The Appellate Division held that the trial court misapplied Code of Civil Procedure section 1987 in requiring Janet to appear at trial on shortened notice without ordering a shortening time and therefore abused its discretion. (Appeal – Opinion Received (11/21/25), 7:26-10:28.) The Appellate Division further held that the trial court abused its discretion in striking Janet's answer as a sanction for her failure to attend the trial. (Appeal – Opinion Received (11/21/25), 11:1-13:24.) The Appellate Division ultimately found the trial court's errors were prejudicial because they deprived Janet of her constitutional rights to due process to a jury trial. (Appeal – Opinion Received (11/21/25), 10:18-22, 13:25-14:13.)

Janet has not met her burden of establishing that a significant benefit has been conferred on the general public or a large class of persons. Janet's motion for attorney fees is based solely on having prevailed on appeal against Plaintiff in connection with procedural matters that happened in court during the pendency of the litigation and not based on the underlying facts of the case. Section 1021.5 provides that "a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest…" (Code Civ. Proc., § 1021.5, italics added.) This language implies that the party against whom the fees are sought acted or failed to act in a way adversely affecting the public interest which ultimately led to enforcement of that public interest through litigation. (See Joshua S., supra, 42 Cal.4th at p. 956.)[2] As this Court noted in its initial tentative ruling on this motion for attorney fees, Janet has not provided, nor has the Court found, any authority holding that a party prevailing on an appeal of a procedural ruling in a litigation is entitled to recover attorney fees under Code of Civil Procedure section 1021.5. Put another way, there is no case law dealing with facts similar to this case in which the wrongful conduct occurred in court during the pendency of litigation rather than during the underlying facts of the case. The appeal enforced Janet's right to a jury trial and proper notice to appear at such trial; this was not a benefit conferred on the general public.

Even assuming, arguendo, the appeal resulted in the enforcement of an important right affecting the public interest, Janet has not met her burden of showing that a significant benefit has been conferred on a large class of persons or that the cost of her victory transcended her personal interest such that the necessity of pursuing the case placed a burden on her disproportionate to her individual stake in the matter. Janet's answer was stricken and judgment entered against her in an unlawful detainer proceeding after, being given shortened notice, she failed to appear for a jury trial she demanded. The Appellate Division reversed the judgment finding that the trial court "abused its discretion by issuing a terminating sanction as a response to defendant's failure to comply with the untimely Notice to Attend the trial…." (Appeal – Opinion Received (11/21/25), 2:9-11.) The Appellate Opinion under the limited factual circumstances established here did not result in conferring a significant benefit on a large class of people. Rather, it protected Janet's rights from procedural errors in this case.

The Court further finds that Janet has not established that the cost of her appellate victory transcended her personal interest in pursuing the appeal. Pursuing the appeal enabled Janet to proceed with her defense against the unlawful detainer proceeding for nonpayment of rent. There is no foreseen value of the appeal to the general public. Without the appeal, Janet would have lost the case and had a judgment against her terminating her right to remain in possession of her home and obligating her to pay money damages in the amount of $28,010.00. Janet has not shown the cost of pursuing the appeal is disproportionate to her personal stake in its outcome, but rather one where the enforcement of any public interest is merely coincidental to the obtaining of personal goals. (See Ryan v. California Interscholastic Federation (2001) 94 Cal.App.4th 1033, 1045-1047.)

Furthermore, the California Supreme Court found in Joshua S. that the plaintiff's lawsuit did not fall within the scope of Code of Civil Procedure section 1021.5 because the plaintiff "was a private litigant with no institutional interest in the litigation, and the judgment she sought in the present case would have settled only her private rights and those of her children and Annette." (Joshua S., supra, 42 Cal.4th at p. 957.) Here, Plaintiff initiated this unlawful detainer action for the purpose of obtaining a judgment of possession of the property and for unpaid rent. This is a private dispute that would have settled only private rights between Plaintiff and Defendants and this action is not itself detrimental to the public interest or seeking to curtail a public right. (See generally, Compl.; Joshua S., supra, 42 Cal.4th at p. 957.) While the trial court's decision to strike Janet's answer violated her constitutional rights to due process and a jury trial, that does not transform the entire lawsuit into one that adversely affects a public interest. "The governing factual barometer 'is the impact of the action, not the manner of its resolution.' [Citation.]" (Leiserson v. City of San Diego (1988) 202 Cal.App.3d 725, 735.)

Finally, as the Court previously stated in its initial tentative ruling, the actions which were the subject of the appeal were those of the trial court, not Plaintiff. Plaintiff brought this litigation to recover his real property after he leased the property to Janet and she failed to make the lease payments. Although Plaintiff's counsel may have served a notice for Janet to appear at trial without sufficient notice, such action was not taken to curtail or compromise any important public rights. Janet prevailed on her appeal of the trial court's rulings, not on the merits of any defense to Plaintiff's lawsuit. Thus, under these circumstances, the Court finds that Plaintiff "is not the type of party on whom private attorney general fees were intended to be imposed." (Joshua S., supra, 42 Cal.4th at p. 953.)

Based on the foregoing, the Court DENIES Janet's motion for attorney fees.

LEGAL STANDARD

Leave to Amend

Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court

(1989) 213 Cal.App.3d 1045, 1047.)

"Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.)

Under Rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

Reclassification

"If a plaintiff, cross-complainant, or petitioner files an amended complaint or other amended initial pleading that changes the jurisdictional classification from limited to unlimited, the party at the time of filing the pleading shall pay the reclassification fee provided in Section 403.060, and the clerk shall promptly reclassify the case." (Code Civ. Proc., § 403.020, subd. (a).)

DISCUSSION

Plaintiff seeks leave to file a First Amended Complaint (FAC) to convert this case from an unlawful detainer action to a civil action for breach of lease and common counts, plus reclassification to an unlimited civil case. Plaintiff indicates that Defendants remained in possession of the subject property for months without paying rent, driving total damages above the $35,000.00 threshold by the time Plaintiff actually received possession. Plaintiff states that the total past due rent and holdover damages accrued to $40,370.00 by February 3, 2025. Plaintiff sets forth the proposed changes. Plaintiff contends that the proposed FAC seeks to add a legal theory of recovery based on new facts that have developed, Defendants will be in the same position, and trial in this matter has not been reset, so Defendants will not be prejudiced. Plaintiff contends conversion from an unlawful detainer action is proper because possession is no longer at issue and the only remaining issue is unpaid rent and holdover damages.

Plaintiff contends the jurisdictional waiver in the original complaint was a condition of a specific procedural filing at a specific point in time, and that the Appellate Division's reversal of the trial court judgment fundamentally altered the posture. Plaintiff contends it would be unjust to hold Plaintiff permanently bound by the original waiver for the time Defendants occupied the premises without paying rent. Plaintiff contends Code of Civil Procedure section 403.040, subdivision (a), requires reclassification when the court determines the case is in the wrong jurisdictional classification. Plaintiff contends the proposed FAC exceeds the limited civil ceiling and that reclassification at this point is not discretionary. Plaintiff contends Defendants will suffer no prejudice, as the FAC introduces no new parties, events, or categories of harm, Defendants are fully aware of the facts, no trial date has been set, and Defendants will have a full and fair opportunity to respond to the FAC.

The Court finds amendment proper. The policy favoring leave to amend is strong. (Kittredge Sports Co. v. Superior Court, supra, 213 Cal.App.3d at p. 1047.) Plaintiff's counsel's declaration sets forth facts indicating the effect of the proposed amendments, why the amendments are necessary and proper, and when the facts giving rise to the amended allegations were discovered. (Cal. Rules of Court, rule 3.1324, subd. (b).) Plaintiff correctly notes that no new trial date is currently set, such that permitting amendment will not unduly prejudice Defendants. (See Magpali v. Farmers Grp., Inc. (1996) 48 Cal.App.4th 471, 488.) Further, since possession is no longer at issue, Plaintiff may also amend to seek other damages not permitted in the unlawful detainer action.

The Court further construes the lack of opposition to this motion as a concession that Plaintiff's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60

Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

However, the Court notes that since Plaintiff seeks reclassification from limited civil to unlimited civil, Plaintiff is required to pay a reclassification fee. (Code Civ. Proc., § 403.020, subd. (a).)

Based on the foregoing, the Court GRANTS Plaintiff’s motion for leave to amend and orders Plaintiff to pay the reclassification fee and submit proof of payment within five calendar days of this order. Plaintiff must also file and serve the proposed FAC within five calendar days of this order.

CONCLUSION

The Court DENIES Defendant Janet G. Cuevas’ motion for attorney fees.

The Court GRANTS Plaintiff’s motion for leave to amend and orders Plaintiff to pay the reclassification fee and submit proof of payment within five calendar days of this order. Plaintiff must also file and serve the proposed FAC within five calendar days of this order.

Plaintiff is ordered to give notice of the Court’s rulings within five calendar days of this order.

[1] The Court refers to Defendant Janet G. Cuevas as “Janet” only to avoid confusion. No disrespect is intended.

[2] To the extent Janet’s supplemental briefs criticize the Court for having raised the limited exception under Joshua S. on its own in its initial tentative ruling, the Court notes that it has the inherent authority to raise and reconsider issues on its own motion. (See Case v. Lazben Financial Co. (2002) 99 Cal.App.4th 172, 178-179 [trial court had inherent authority to reconsider earlier ruling sua sponte and was not limited by statute].) The general rule limiting a court’s ability to raise and decide issues not addressed in the parties’ briefs applies to appellate courts, not trial courts. (See ibid.; Gov. Code, § 68081; People v. Alice (2007) 41 Cal.4th 668, 673-674, 677 [Supreme Court holding that Court of Appeal violated

Government Code section 68081 by deciding issue not addressed in parties' briefs and denying petition for rehearing under section 68081].) Notwithstanding, the Court gave the parties the opportunity to submit additional briefs, which they did, so this issue is moot.